Chapter - 5

Crime against Women

Although women may be victims of any of the general crimes such as 'murder', 'robbery', 'cheating', etc, only the crimes which are directed specifically against women are characterised as 'crimes against women'. Various new legislations have been brought and amendments have been made in existing laws with a view to handle these crimes effectively. These are broadly classified under two categories.

(1) The crimes under the Indian Penal Code (IPC)

i) Rape (Sec. 376 IPC)
ii) Kidnapping & abduction for specified purposes (Sec. 363 - 373 IPC)
iii) Homicide for dowry, dowry deaths or their attempts (Sec. 302/304-B IPC)
iv) Torture - both mental and physical (Sec. 498-A IPC)
v) Assault on women with intent to outrage her modesty (Sec. 354 IPC)
vi) Insult to the modesty of women (Sec. 509 IPC)
vii) Importation of girl from foreign country (upto 21 years of age) (Sec. 366-B IPC)

(2) The crimes under the Special & Local Laws (SLL)

Although all laws are not gender specific, the provisions of law affecting women significantly have been reviewed periodically and amendments carried out to keep pace with the emerging requirements. The gender specific laws for which crime statistics are recorded throughout the country are -

(i) The Immoral Traffic (Prevention) Act, 1956
(ii) The Dowry Prohibition Act, 1961
(iii) The Indecent Representation of Women (Prohibition) Act, 1986
(iv) The Commission of Sati Prevention Act, 1987

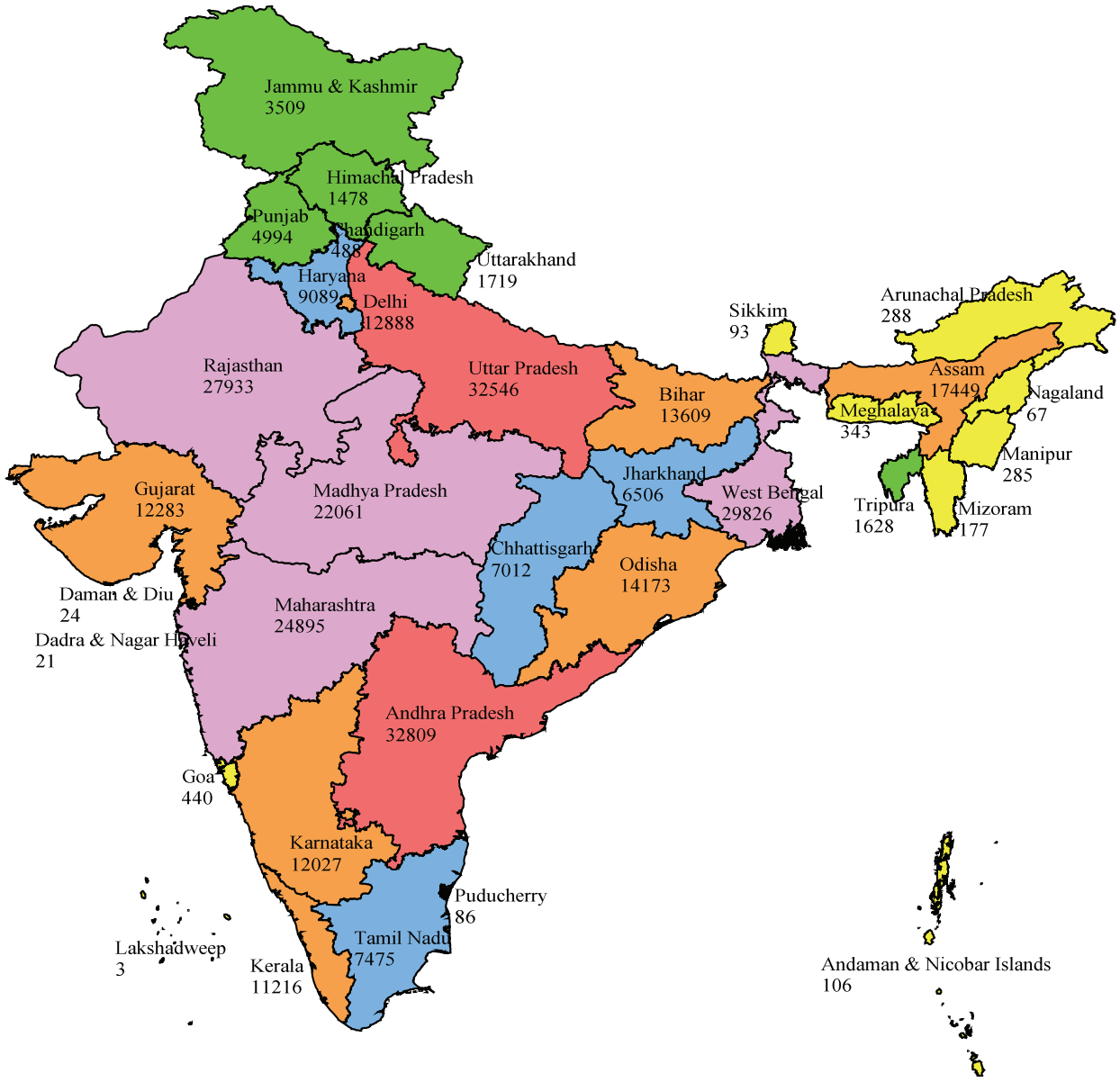
'Crime rate' for crimes committed against women has been calculated using only female population based on RGI`s projected mid-year female population for the year 2013.

Reported incidents of crime *(Incidence- 3,09,546)*

A total of 3,09,546 cases of crime against women (both under various sections of IPC and SLL) were reported in the country during the year 2013 as compared to 2,44,270 in the year 2012, thus showing an increase of 26.7% during the year 2013. These crimes have continuously increased in reporting during 2009 - 2013 with 2,03,804 cases in 2009 and 2,13,585 cases in 2010 and 2,28,649 cases in 2011, 2,44,270 cases 2012 and 3,09,546 cases in the year 2013. Andhra Pradesh with 7.3% share of country's women population has reported nearly 10.6% of total crimes committed against women at All India level, by reporting 32,809 cases, and Uttar Pradesh accounting for nearly 16.7% of the country's women population, has accounted for 10.5% of total cases of crimes against women in the country by reporting 32,546 cases during the year 2013.

INCIDENCE OF CRIME AGAINST WOMEN DURING 2013

(All India 3,09,546)



Incidence (No. of Cases)

- Upto 1,000
- 1,001 - 5,000
- 5,001 - 10,000
- 10,001 - 20,000
- 20,001 - 30,000
- Above 30,000

Crime rate

(Crime rate- 52.2)

The rate of crime committed against women was 52.2 in 2013. Delhi UT has reported the highest rate of crime against women at 146.8 during the year 2013 as compared to 52.2 crime rate at the national level.

Trend analysis

The crime head-wise details of reported crimes during the year 2009 to year 2013 along with percentage variation are presented in **Table-5(A)**. The crime against women during the year 2013 has increased by 26.7% over the year 2012 and by 51.9% over the year 2009. The IPC component of crimes against women has accounted for 95.6% of total crimes and the rest 4.4% were SLL crimes against women.

The proportion of IPC crimes committed against women towards total IPC crimes has increased during last 5 years from 9.2% in the year 2009 to 11.2% during the year 2013 **(Table 5(B)).**

Crime head-wise analysis (IPC)

Rape (Sec. 376 IPC)

(Incidence- 33,707 Rate- 5.7)

An increasing trend in the incidence of rape has been observed during the periods 2009 - 2013. These cases have reported an increase of 3.6% in 2010 over 2009 and an increase of 9.2% in the year 2011 over the year 2010, an increase of 3.0% in the year 2012 over 2011 and further an increase of 35.2% in the year 2013 over 2012. 12.9% of rape cases were reported in Madhya Pradesh (4,335 out of 33,707 cases) followed by 9.8% in Rajasthan (3,285 cases), 9.1% in Maharashtra (3,063 cases) and 9.1% in Uttar Pradesh (3,050 cases). Delhi UT has reported

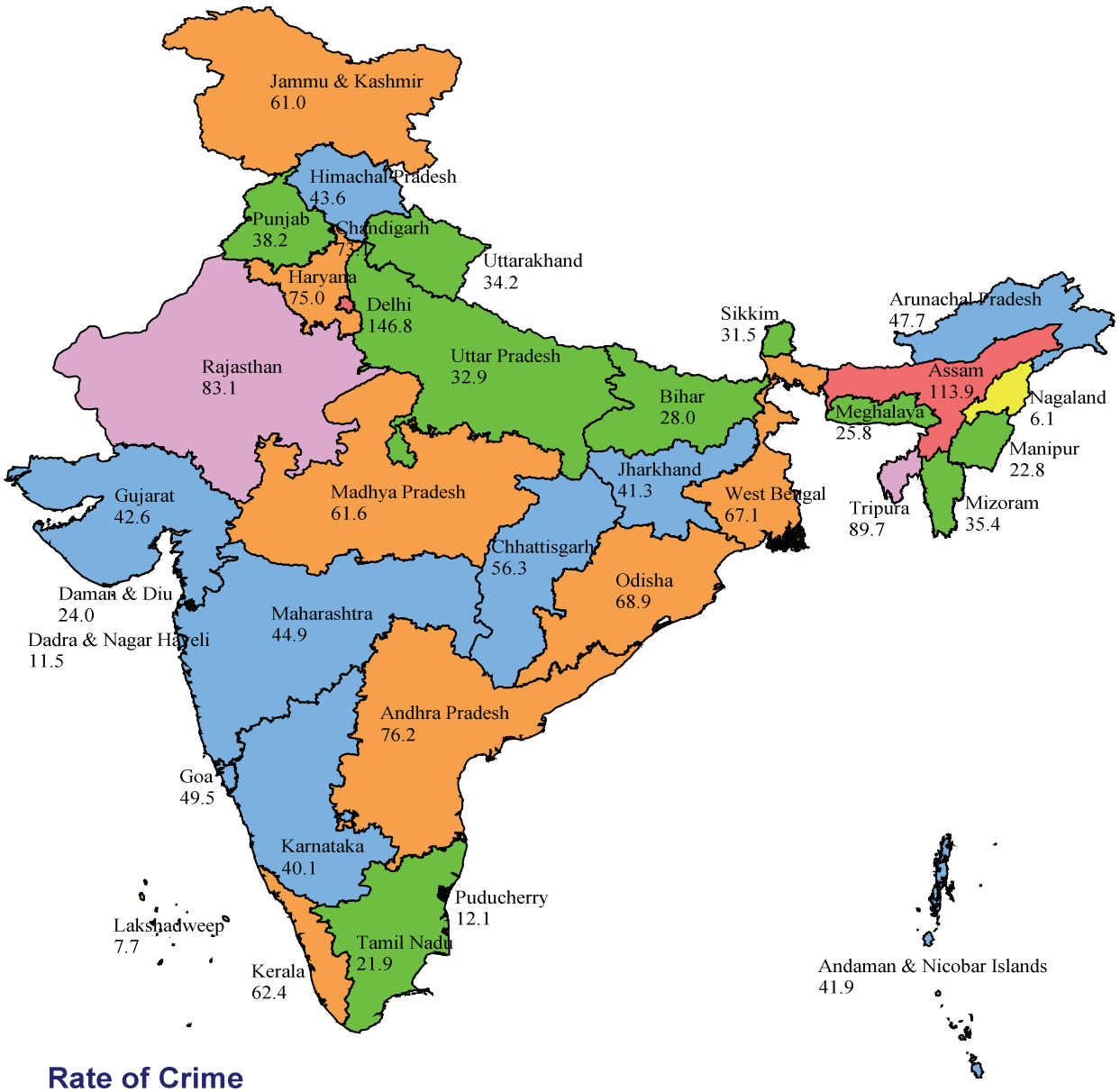
Table – 5(A)

Crime head-wise incidents of crime against women during 2009 - 2013 and percentage variation in 2013 over 2012

Sl. No.	Crime head	Year					Percentage variation in 2013 over 2012
		2009	2010	2011	2012	2013	
1.	Rape (Sec. 376 IPC)	21,397	22,172	24,206	24,923	33,707	35.2
2.	Kidnapping & abduction(Sec. 363 to 373IPC)	25,741	29,795	35,565	38,262	51,881	35.6
3.	Dowry death (Sec. 302 / 304 IPC)	8,383	8,391	8,618	8,233	8,083	-1.8
4.	Cruelty by husband or his relatives (Sec. 498-A IPC)	89,546	94,041	99,135	1,06,527	1,18,866	11.6
5.	Assault on women with intent to outrage her modesty (Sec. 354 IPC)	38,711	40,613	42,968	45,351	70,739	56.0
6.	Insult to the modesty of women(Sec. 509 IPC)	11,009	9,961	8,570	9,173	12,589	37.2
7.	Importation of girl from foreign country (Sec. 366-B IPC)	48	36	80	59	31	-47.4
A.	**Total IPC crime against Women**	**1,94,832**	**2,05,009**	**2,19,142**	**2,32,528**	**2,95,896**	**27.3**
8.	Commission of Sati Prevention Act, 1987	0	0	0	0	0	0.0
9.	Immoral Traffic (Prevention) Act, 1956	2,474	2,499	2,435	2,563	2,579	0.6
10.	Indecent Representation of Women (P) Act,1986	845	895	453	141	362	156.7
11.	The Dowry Prohibition Act, 1961	5,650	5,182	6,619	9,038	10,709	17.9
B.	**Total SLL crime against Women**	**8,969**	**8,576**	**9,507**	**11,742**	**13,650**	**16.2**
	Total(A+B)	**2,03,804**	**2,13,585**	**2,28,649**	**2,44,270**	**3,09,546**	**26.7**

RATE OF CRIME AGAINST WOMEN DURING 2013

(All India 52.2)



Rate of Crime

- Upto 20.0
- 20.1 - 40.0
- 40.1 - 60.0
- 60.1 - 80.0
- 80.1 - 100.0
- Above 100.0

Note:

Rate of Crime against Women means number of crimes against women per one lakh population of Women.

Table - 5(B)
Proportion of crime against women (IPC) towards total IPC crimes

Sl. No.	Year	Total IPC Crimes	Crime Against women (IPC cases)	Percentage to total IPC crimes
1	2009	21,21,345	2,03,804	9.2
2	2010	22,24,831	2,13,585	9.6
3	2011	23,25,575	2,19,142	9.4
4	2012	23,87,188	2,44,270	10.2
5	2013	26,47,722	2,95,896	11.2

the highest crime rate of 18.6 as compared to national average of 5.7.

Rape cases have been further categorised as incest rape and other rape cases.

Incest rape
(Incidence……536)

Incest rape cases have increased by 36.7% from 392 cases in 2012 to 536 cases in 2013 as compared to 35.2% increase in overall rape cases. 20.1% of such cases were registered in Maharashtra (108 out of 536 cases), wherein 117 victims of incest rape(rape by blood relatives) were reported. It is to be noted that 52.2% of incest rape victims (286 out of 548 victims) were in age group of 10-18 years. (See **Table 5.3)**

Rape victims

There were 33,764 victims of rape out of 33,707 reported rape cases in the country during the year 2013. 13.1% (4,427 out of 33,764) of the total victims of rape were girls under 14 years of age, while 26.3% (8,877 victims out of 33,764) were teenaged girls (14-18 years). 46.1% (15,556 victims) were women in the age-group 18-30 years. However, 13.8% (4,648 victims) victims were in the age-group of 30-50 years while 0.7% (256 victims) was over 50 years of age. The details are given in **Table-5.3**.

In most of rape case offenders are known to victims. During 2013, offenders were known to the victims in as many as in 94.4% of rape cases (31,807 out of 33,707 cases). It is to be noted 15 out of 35 States/UTs have reported 100% of such cases, these States & UTs are Andhra Pradesh, Arunachal Pradesh, Assam, Chhattisgarh, Goa, Haryana, Himachal Pradesh, Madhya Pradesh, Manipur, Odisha, Uttarakhand, A & N Island, Chandigarh, Lakshadweep and Puducherry. Most of offenders were reported as neighbours accounting 33.9% (10,782 out of 31,807 cases). Parents / close family members were involved in 1.7% of these cases (539 out of 31,807 cases) whereas relatives were involved in 7.3% cases (2,315 out of 31,807 cases). However, in 57.1% of rape cases offenders were reported as other known persons. The State /UT / City-wise details are presented in **Table-5.4**.

Kidnapping & Abduction
(Sec. 363-373 IPC)
(Incidence- 51,881 Rate- 8.8)

These cases have reported an increase of 35.6% during the year as compared to previous year 2012 (38,262 cases). Uttar Pradesh with 9,737 cases has accounted for 18.8% of the total cases at the national level. Delhi UT has reported the highest crime rate at 41.1 as compared to the national average of 8.8.

Dowry Deaths
(Sec. 302, 304B IPC)
(Incidence- 8,083 Rate- 1.4)

The cases of dowry deaths have

decreased by 1.8% during the year 2013 over the previous year (8,233 cases). 28.9% of the total such cases reported in the country were reported from Uttar Pradesh (2,335 cases) alone followed by Bihar (1,182 cases) (14.6%). The highest rate of crime (2.43) was reported from Bihar followed by Uttar Pradesh (2.36) as compared to the national average of 1.4.

Torture (cruelty by husband or his relatives) (Sec. 498-A IPC)
(Incidence-1,18,866 Rate-20.1)

The cases of 'Torture' committed on women in the country have increased by 11.6% during 2013 over the previous year (1,06,527 cases). Most of these cases (40.8%) were reported from West Bengal (18,116 cases) followed by Rajasthan 12.7% (15,094 cases) and Andhra Pradesh 12.7% (15,084). The highest crime rate of 56.4 was reported from Assam as compared to the national rate at 20.1.

Note: Higher or low incidence of cases under this head may be indications of socio-economic milieu of concerned State/UT.

Assault on women with intent to outrage her modesty (Sec. 354 IPC)
(Incidence-70,739 Rate- 11.9)

Incidents of assault on women with intent to outrage her modesty in the country have increased by 56.0% during 2013 over the previous year (45,351 cases). Madhya Pradesh has reported the highest incidence (8,252 cases) followed by Maharashtra (8,132 cases), amounting to 11.7% and 11.5% of total such incidences. Delhi UT has reported the highest crime rate (40.0) as compared to the national average of 11.9.

Insult to the modesty of women (Sec. 509 IPC)
(Incidence- 12,589 Rate- 2.1)

The number of such cases has increased by 37.2% during 2013 over the previous year (9,173 cases). Andhra Pradesh has reported 37.3% (4,702 cases) followed by Maharashtra 20.9% (2,632 cases) of total such cases during the year 2013. Andhra Pradesh has reported the crime rate at 10.9 followed by Delhi UT at 10.4 as compared to the national average of 2.1.

Importation of girls from foreign country (Sec. 366-B IPC)
(Incidence- 31)

A decrease of 47.4% has been observed in cases registered under this crime in 2013 (31 cases) over 59 cases registered in 2012. West Bengal (9 cases) and Bihar & Madhya Pradesh (7 cases each) have together registered 74.2% of total such cases at the national level (23 out of 31 cases).

SLL Crime-head wise analysis

Immoral Traffic (Prevention) Act, 1956
(Incidence-2,579 Rate- 0.4)

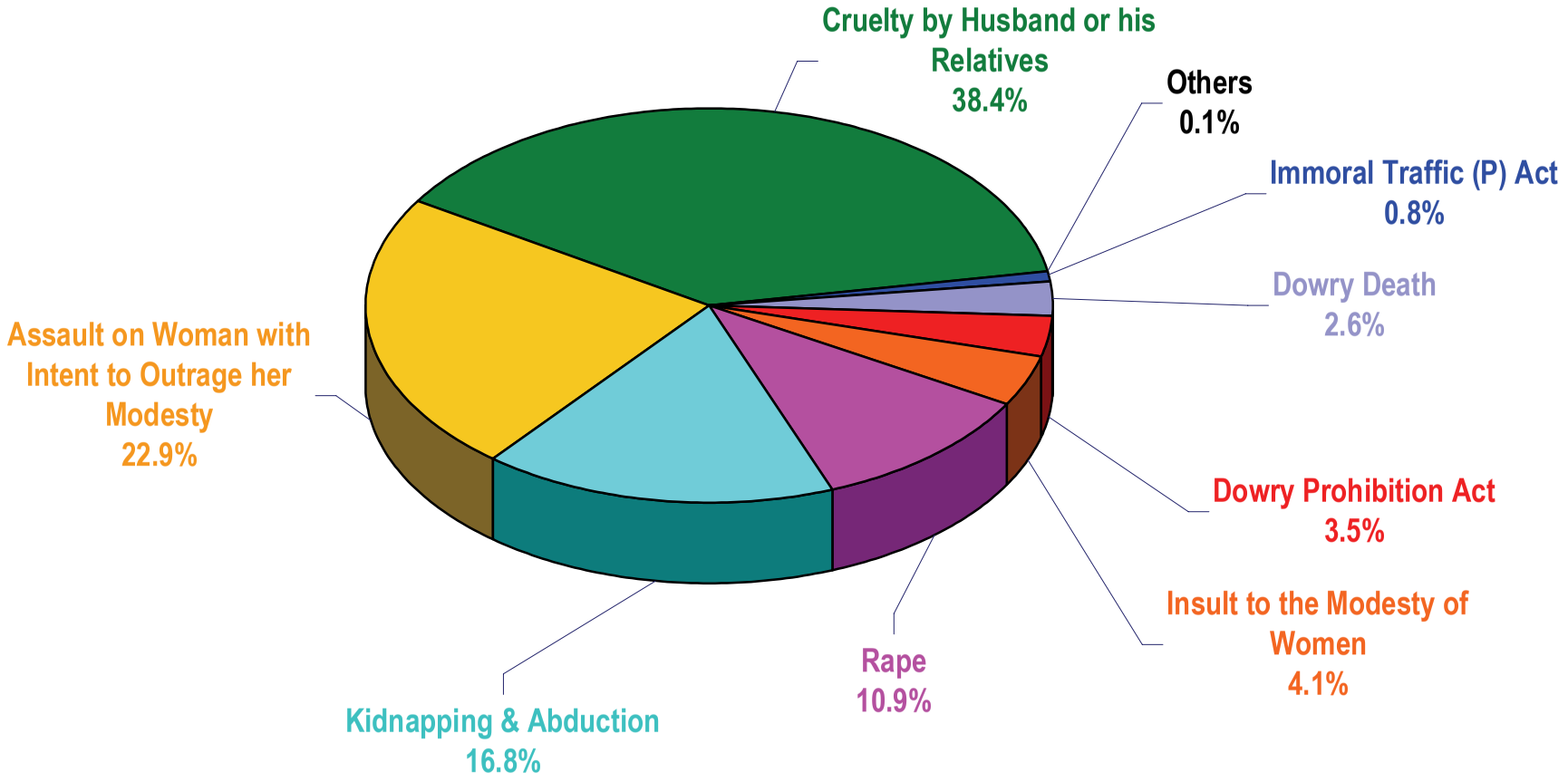
Cases under this Act have registered an increase of 0.6% during the year 2013 as compared to the previous year (2,563). The highest incidents of 21.3% (549 cases out of 2,579 cases) of such cases were reported from Tamil Nadu followed by Andhra Pradesh 19.0% (489 cases). Daman & Diu UT has reported the crime rate of 6.0 as compared to the national average of 0.4.

Commission of Sati Prevention Act,1987

No case was registered under this crime head across the country during the year 2013.

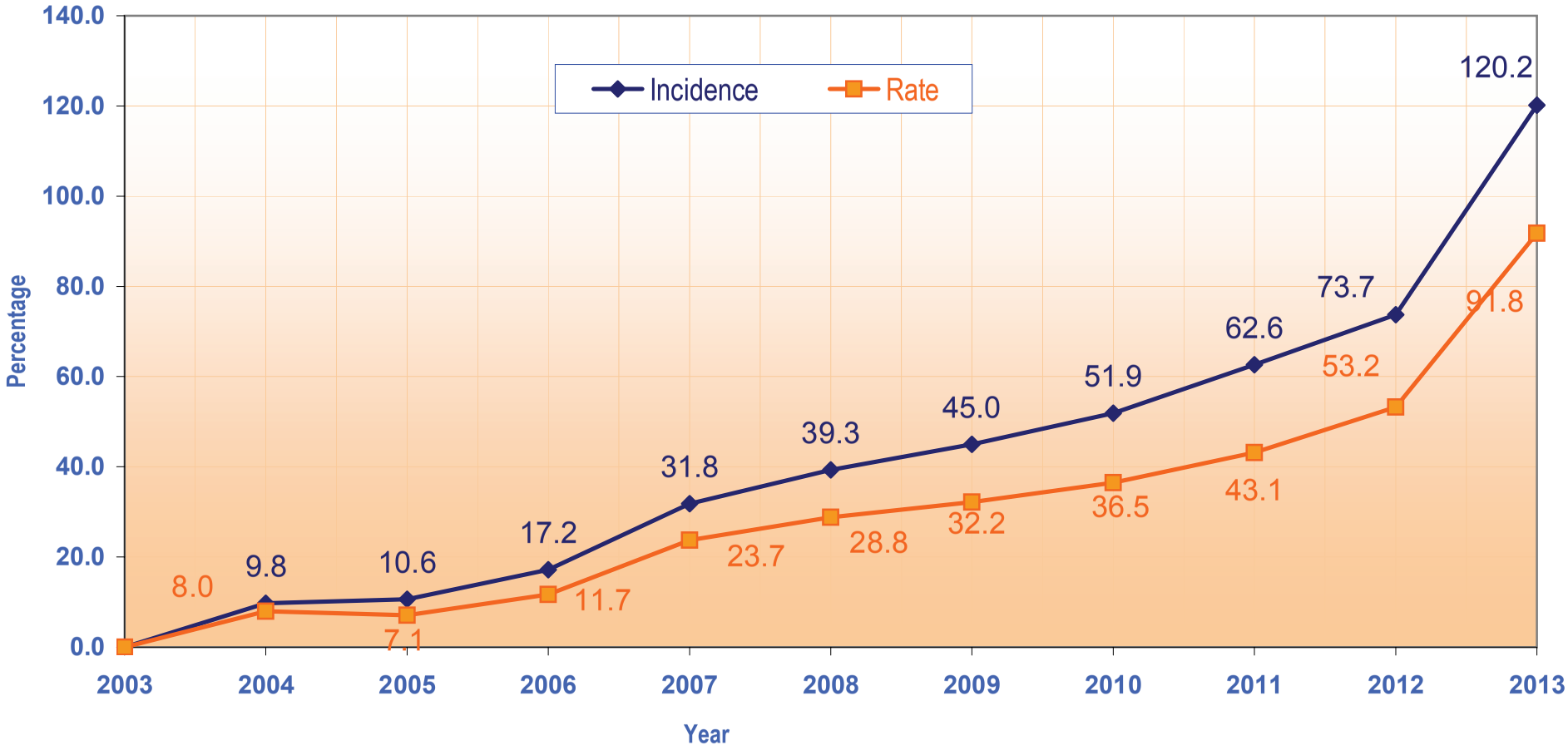
Crime against women percent distribution during 2013

Figure 5.1



Incidence & rate of crime against women percentage change from 2003

Figure 5.2



Year 2003 onwards, the crime rate has been worked out using female population of respective years

Percentage change in the incidence in the year over the year 2003

Percentage change in the rate of crime in the year over the year 2003

Indecent Representation of Women (Prohibition) Act, 1986
(Incidence-362)

An increase of 156.7% was noticed in this crime head during the year 2013 as compared to the previous year (141 *cases*). Andhra Pradesh reported 69.3% of total such cases (251 out of 362 cases) with crime rate of 0.6 cases compared to crime rate of 0.1 at the national level in the year 2013.

Dowry Prohibition Act
(Incidence-10,709 Rate-1.8)

The incidents of cases registered under this Act have increased by 17.9% during the year 2013 as compared to the previous year (9,038 cases). 18.8% of such cases were reported from Odisha (2,014) followed by Bihar (1,893 cases) accounting for 17.7% of total cases at the national level. The highest crime rate of 9.8 was reported from Odisha as compared to 1.8 at the national level.

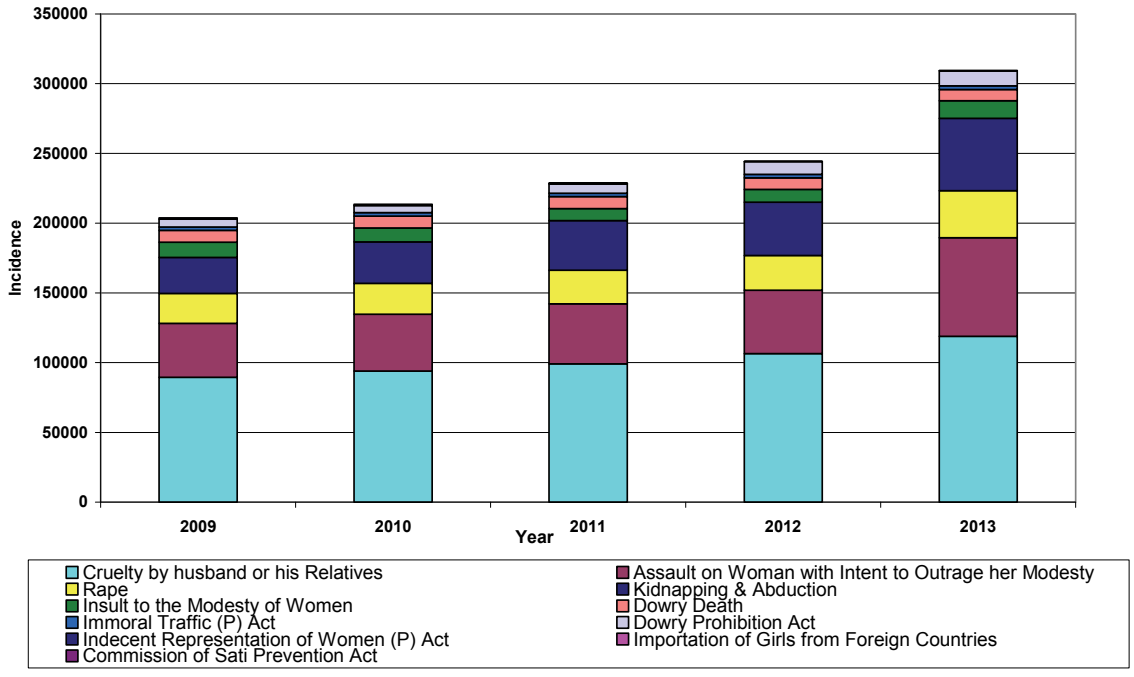
Crime against women in cities
(All-India- 3,09,546
Cities- 53,464)

53 cities, each having population over 10 lakh and more, (See **Chapter-2**) have been identified as mega cities as per **The Population Census 2011.** A total of 53,464 cases of crimes against women were reported from these 53 cities during the year 2013 as compared to 36,622 cases in the year 2012. The rate of crime in cities at 69.7 was comparatively higher as compared to the national rate of 52.2.

Among 53 cities, Delhi (11,449 cases) has accounted for 21.4% of total such crimes followed

Crime head wise incidence of crime against women during 2009-2013

Figure 5.3



by Mumbai (5.5%) (2,946 cases), Bengaluru (4.9%) (2,608 cases), Ahmedabad (4.6%) (2,449 cases) and Kolkata (4.5%) (2,399 cases). Whereas the crime rate was significantly higher in Vijayawada, Kota, Gwalior, Delhi city and Jaipur at 279.70, 183.43, 165.23, 151.13 and 139.81 respectively as compared to 52.2 at the national level.

Among 53 mega cities, Delhi city has accounted for 29.4% of total rape cases (1,441 out of 4,900), 35.1% of total kidnapping & abduction cases (3,093 out of 8,809), 13.8% of total cruelty by husband or his relatives cases (2,879 out of 20,795), 15.8% of total dowry deaths cases (125 out of 793), 25.8% of total assault on women with intent to outrage her modesty cases (3,069 out of 11,913) and 23.9% of total insult to the modesty of women cases (807 out of 3,375) reported out of 53 cities. All 9 cases of 'importation of girl from foreign country', registered in West Bengal, have been reported from Kolkata only.

25.8% (3,069 out of 11,913 cases) of Assault on women with intent to outrage her modesty incidence was reported in Delhi alone.

It is worthwhile to mention that Delhi City, Mumbai, Bengaluru, Ahmedabad and Kolkata have booked more cases under Special & Local Laws among the mega cities. 21.7% (264 out of 1,216 cases) of incidents of Immoral Traffic (Prevention) Act was reported in Chennai city only.

Similarly, 47.5% (19 out of 40 cases) and 12.5% (5 out of 40 cases) of cases registered under Indecent Representation of Women (P) Act were reported in Jaipur and Jodhpur respectively. 50.9% (821 out of 1,614) of cases reported under Dowry Prohibition Act during the year 2013 were registered in Bengaluru city alone.

City wise patterns of rape cases reported in the year 2013 reveals that rape cases in 49 out of 53 Cities, offenders were known to victims, these cities were Agra, Ahmedabad, Allahabad, Amritsar, Aurangabad, Bhopal, Chandigarh City, Chennai, Coimbatore, Dhanbad, Durg-Bhilainagar, Faridabad, Gwalior, Hyderabad, Indore, Jabalpur, Jaipur, Jamshedpur, Jodhpur, Kannur, Kanpur, Kochi, Kollam, Kota, Kozhikode, Lucknow, Ludhiana, Madurai, Malappuram, Mumbai, Nagpur, Nasik, Patna, Pune, Raipur, Rajkot, Ranchi, Surat, Thiruvananthapuram, Thrissur, Tiruchirapalli, Vadodara, Varanasi, Vasai Virar, Vijaywada and Vishakhapatnam.